

BC570051 BC570051

County: los-angeles

Division: Civil Law and Motion

Department: 1

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Case Number: BC570051 Hearing Date: September 22, 2026 Dept: 1

Tentative Ruling

Judge Theresa M. Traber, Department 1

HEARING DATE: September 22, 2026

CASE: An et al. v. Gen Alhambra, LLC et al.

CASE NO.: BC570051

MOTION

TO ENFORCE ORDER AND JUDGMENT OF FINAL APPROVAL; REQUEST FOR SANCTIONS IN THE AMOUNT OF \$7,560.00

Moving Party: Plaintiffs Kevin

An, Sung Eun Do, Ji-Cheul Kim, Joo Ho Ma, and Emily Dunkijacobsnolton (Rastegar Law Group, APC and Baker, Burton & Lundy)

Responding Party: Defendant Gen Alhambra, LLC (Barnes & Thornburg LLP) (no response filed)

Ruling: Motion is GRANTED IN

PART. Defendant is to make the final

installment payment of \$283,333.33 to the settlement administrator within 20

days. The request for sanctions is

denied without prejudice.

This was a wage and hour putative class and Private

Attorneys General Act (PAGA) action. On June 17, 2025, the Court entered an order and judgment granting final approval of the settlement between plaintiffs Kevin An, Sung Eun Do, Ji-Cheul Kim, Joo Ho Ma, and Emily Dunkijacobsnolton (Plaintiffs) and defendant Gen Alhambra, LLC (Defendant). Plaintiffs report that Defendant has failed to make the final installment payment of \$283,333.33 to the settlement administrator and seek an order compelling Defendant to do so.

The Court has jurisdiction over this motion pursuant to the June 17, 2025 judgment, which provides that “the Court shall retain continuing jurisdiction over: (a) interpretation,

implementation and enforcement of the class settlement in this action, and (b) enforcement and

administration of the Settlement Agreement, and any and all related matters[.]” (June 17, 2025 Judgment, ¶ 10.) The Court does have the inherent power issue orders compelling obedience to its judgments under Code Civ. Proc. § 128(a)(4). The Court will order Defendant to make the final installment payment to the settlement administrator.

Plaintiffs request sanctions in the amount of \$7,560 for fees and costs incurred in bringing the motion, but do not identify the source of any right to attorney fees and costs. Nor does the notice of motion. Further, the Notice fails to identify “Defendant” by name. Due process requires that Defendant be given proper notice of the authority for Plaintiffs’ demand for sanctions and the authority therefor. The Court therefore denies the request for fees without prejudice to those fees being sought by a noticed motion upon proper grounds.

CONCLUSION

For the foregoing reasons, the motion is GRANTED in part. Defendant Gen Alhambra, LLC is obligated to pay \$283,333.33 to Phoenix Class Action Administrators within 21 days of this order. Plaintiffs’ request for sanctions is denied without prejudice. Plaintiffs

to give notice.